

CRIMINAL LAW 1 (BOOK I, RPC)

Master ALAC Case Digest Compendium (Answer - Legal Basis - Application - Conclusion)

Manila Law College • First Semester, AY 2026-2027

Rigorous Law School Case Digest Compendium Formatted via ALAC Method (Answer - Legal Basis - Application - Conclusion)

CASE 1: People of the Philippines v. Custodio Gonzales, Sr.

G.R. No. 80762, March 19, 1990 | 183 SCRA 309 | Ponente: Sarmiento, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:** II. Felonies — Elements: Act Required for Criminal Liability
- **Governing Statutory Article:** Article 3, Revised Penal Code (Felonies Committed by Deceit or Fault)

II. FACTS OF THE CASE

Lloyd Peñacerrada was killed in Iloilo. Months after the incident, a lone eyewitness, Jose Huntoria (a tenant of the victim), testified that he saw spouses Augusto and Fausta Gonzales, their sons, and appellant Custodio Gonzales, Sr. stabbing the victim. Custodio raised the defense of alibi, claiming he was asleep in his house at the time of the killing. The trial court and Court of Appeals convicted him of Murder based solely on the uncorroborated testimony of Huntoria.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the delayed, uncorroborated testimony of a lone eyewitness is sufficient to establish an overt felonious act and overcome the constitutional presumption of innocence beyond reasonable doubt.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: NO. The uncorroborated and delayed testimony of a lone biased eyewitness fails to prove an overt act of participation and cannot sustain a conviction for murder.

L — LEGAL BASIS: Article 3, Revised Penal Code; Article III, Section 14(2), 1987 Constitution (Presumption of Innocence). A felony requires an overt bodily act; criminal liability cannot be anchored on doubtful, delayed eyewitness testimony.

A — APPLICATION: Huntoria's testimony suffered from material inconsistencies, delay of several months in reporting to authorities, and bias as a tenant of the deceased. No physical or medical evidence connected Custodio to the murder weapon or wounds. Mere presence or suspicion without proof of an overt participating act does not generate criminal culpability.

C — CONCLUSION: The Supreme Court REVERSED the conviction and ACQUITTED Custodio Gonzales, Sr. on reasonable doubt.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Criminal liability under Article 3 of the RPC requires proof of an external, overt bodily act beyond reasonable doubt.

- **Doctrine:** The constitutional presumption of innocence prevails over uncorroborated, delayed eyewitness accounts.

CASE 2: People of the Philippines v. Romana Silvestre and Martin Atienza

56 Phil. 353 (1931) | Ponente: Villa-Real, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Martin Atienza entered a neighbor's house, announced his intention to burn it down, and ignited the roof. Romana Silvestre (his cohabitant) stood nearby, listened, and watched the fire without raising an alarm or calling for help. Forty-eight (48) houses were destroyed in the resulting conflagration. Silvestre was convicted of Arson as an accomplice by the trial court for failing to stop Atienza.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether a person who is passively present at the scene of a crime and remains silent without preventing its commission is criminally liable by omission under Article 3 of the Revised Penal Code.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: NO. Mere passive presence and silence at the scene of a crime, in the absence of a positive legal duty to act or prior conspiracy, does not constitute a punishable criminal omission.

L — LEGAL BASIS: Article 3, Revised Penal Code (Felonies by Omission); Article 18, RPC (Accomplices). Criminal omission requires the breach of an explicit positive legal duty imposed by statute.

A — APPLICATION: Under Philippine law, there is no statutory obligation for a private individual or cohabitant to prevent another from committing arson or to raise an alarm under pain of criminal prosecution. Silvestre did not cooperate in the execution of the fire, gave no moral encouragement, and had no legal duty to stop Atienza.

C — CONCLUSION: The Supreme Court ACQUITTED Romana Silvestre of all criminal liability, while AFFIRMING the conviction of Martin Atienza as principal in Arson.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** To incur criminal liability by omission under Article 3, there must be a specific positive legal duty to act created by law.
- **Doctrine:** Mere passive presence, silence, or failure to report a crime in progress does not make one a principal or accomplice.

CASE 3: United States v. Ah Chong

15 Phil. 488 (1910) | Ponente: Carson, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Ah Chong, a cook in Fort McKinley, was asleep in his room. To secure the door against frequent robberies in the area, he placed a chair against it. Awakened in the dead of night by someone violently forcing the door open, Ah Chong called out twice, 'Who is there?' Receiving no answer and believing he was being attacked by a ladrón (robber), he grabbed a kitchen knife and fatally struck the intruder, who turned out to be his roommate, Pascual Gualberto.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether an act committed under an honest and reasonable mistake of fact negates criminal intent (dolo) and exempts the actor from criminal liability.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Honest mistake of fact negates felonious intent (mens rea).

L — LEGAL BASIS: Article 3, Revised Penal Code; Maxim 'Ignorantia Facti Excusat' (Mistake of fact excuses); Article 11(1), RPC (Self-Defense).

A — APPLICATION: Under the circumstances, Ah Chong had no felonious intent. He acted under an honest mistake of fact without negligence, believing his life was in imminent peril from a nocturnal robber. Had the facts been as he reasonably believed, his act of striking the intruder would have constituted complete, lawful self-defense.

C — CONCLUSION: The Supreme Court REVERSED the conviction and ACQUITTED Ah Chong of all criminal liability.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Mistake of Fact (Ah Chong Doctrine): Requisites: (1) The act would have been lawful had the facts been as the accused believed; (2) The intention in performing the act was lawful; (3) The mistake was honest and not due to negligence.
- **Doctrine:** Actus non facit reum, nisi mens sit rea (An act does not make a person guilty unless the mind is guilty).

CASE 4: People of the Philippines v. Antonio Oanis and Alberto Galanta

74 Phil. 257 (1943) | Ponente: Moran, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Police officers Oanis and Galanta were instructed to arrest Anselmo Balagtas, a notorious escaped convict who was armed and dangerous. Entering a room where Balagtas was rumored to be sleeping with a paramour, the officers saw a man sleeping with his back turned. Without verifying his identity or ordering him to surrender, both officers immediately opened fire, riddling the sleeping man with bullets. The victim was not Balagtas, but Serapio Tecson, an innocent, unarmed citizen.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the police officers can invoke mistake of fact or fulfillment of duty to justify killing an innocent sleeping person mistaken for an escaped outlaw.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: NO. Mistake of fact is unavailable when the mistake arises from gross negligence; the officers are guilty of Murder.

L — LEGAL BASIS: Article 3, RPC (Culpa & Gross Negligence); Article 11(5), RPC (Fulfillment of Duty); Article 248, RPC (Murder qualified by Treachery).

A — APPLICATION: Unlike in *Ah Chong*, the officers were under no imminent danger because the victim was asleep with his back turned. They failed to exercise even minimum precautions to ascertain the victim's identity before firing. Shooting a defenseless sleeping man constitutes gross negligence and treachery, disqualifying both mistake of fact and fulfillment of duty.

C — CONCLUSION: The Supreme Court CONVICTED Oanis and Galanta of Homicide (with mitigating circumstance of incomplete fulfillment of duty) and sentenced them accordingly.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Mistake of fact is inapplicable when the actor acted with reckless negligence or where no actual danger existed.
- **Doctrine:** In fulfillment of duty under Article 11(5), the use of lethal force is authorized only when strictly necessary to overcome active resistance.

CASE 5: Aristotel Valenzuela v. People of the Philippines

G.R. No. 160188, June 21, 2007 | 525 SCRA 306 | Ponente: Tinga, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Valenzuela and a companion hauled cases of Tide detergent bars out of the SM Supermarket in Mandaluyong City, loaded them into a pushcart, and transferred them into a taxi. As the taxi was about to exit the parking area, security guards intercepted the vehicle and recovered the stolen goods. Valenzuela argued that since he was intercepted before leaving the supermarket premises, the crime was only Frustrated Theft.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether under Article 308 of the Revised Penal Code, there is a crime of 'Frustrated Theft.'

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: NO. Theft is consummated upon the unlawful taking (apoderamiento) and complete control over the property, regardless of subsequent interception.

L — LEGAL BASIS: Articles 6 and 308, Revised Penal Code (Elements of Theft and Stages of Execution).

A — APPLICATION: Under Article 308, the essential element of theft is 'taking' (apoderamiento) with intent to gain. The moment the thief obtains physical possession and unlawful control over the property without the owner's consent, the taking is complete, and theft is consummated. There is no middle stage between attempted taking and consummated taking.

C — CONCLUSION: The Supreme Court CONVICTED Valenzuela of CONSUMMATED THEFT, formally abandoning all prior inconsistent rulings on frustrated theft.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Landmark Valenzuela Doctrine: Theft has only two stages of execution—Attempted Theft and Consummated Theft. Frustrated Theft does not exist under Philippine law.
- **Doctrine:** Unlawful taking is complete the moment the offender acquires dominion and control over the personal property of another.

CASE 6: People of the Philippines v. Marivic Genosa

G.R. No. 135981, January 15, 2004 | 419 SCRA 537 | Ponente: Panganiban, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Marivic Genosa was subjected to severe, repeated physical and psychological beatings by her alcoholic husband, Ben Genosa, throughout their marriage. During their final altercation, the husband viciously battered her while eight months pregnant. After he fell asleep, Marivic, fearing that he would wake up and kill her and her unborn child, took a pipe and shot him, resulting in his death. She raised the defense of Battered Woman Syndrome (BWS).

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether Battered Woman Syndrome (BWS) qualifies as self-defense or a mitigating circumstance under the Revised Penal Code.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. While acute battered state did not satisfy the strict immediacy requirement of unlawful aggression for complete self-defense under the old RPC, BWS constitutes a mitigating circumstance analogous to passion, obfuscation, and illness, and is recognized as a complete defense under R.A. 9262.

L — LEGAL BASIS: Article 11(1), Article 13(9-10), RPC; Republic Act No. 9262 (Anti-Violence Against Women and Their Children Act of 2004).

A — APPLICATION: BWS is characterized by a recurring cycle of violence: (1) tension-building, (2) acute battering incident, and (3) tranquil, loving state. An expert psychiatric evaluation established that Marivic suffered from BWS. The Court applied two mitigating circumstances (analogous illness and passion/obfuscation) to reduce her penalty and allow her immediate release on served time.

C — CONCLUSION: The Supreme Court REDUCED the penalty to 6 years of Prison Correccional to 14 years of Reclusion Temporal and ORDERED her immediate release on parole.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Landmark Genosa Doctrine: Battered Woman Syndrome is recognized in Philippine jurisprudence, later codified into law under Section 26 of R.A. 9262 as a complete absolatory defense.
- **Doctrine:** BWS recognizes that cumulative trauma alters a woman's perception of danger, establishing that the threat of violence is constant and acute.

CASE 7: People of the Philippines v. Bayotas

G.R. No. 102007, September 2, 1994 | 236 SCRA 239 | Ponente: Romero, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- • Syllabus Coverage:
- • Governing Statutory Article:

II. FACTS OF THE CASE

Rogelio Bayotas was convicted of Rape and sentenced to Reclusion Perpetua by the RTC. While his appeal was pending before the Supreme Court, Bayotas died at the National Bilibid Prison Hospital. The Solicitor General argued that while criminal liability was extinguished by death, civil liability ex delicto survived and could be claimed against the estate of the deceased.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the death of an accused pending appeal of his conviction extinguishes both his criminal liability and his civil liability arising from the crime (ex delicto).

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Death of the accused pending appeal extinguishes both criminal liability and civil liability solely based on the crime (ex delicto).

L — LEGAL BASIS: Article 89(1), Revised Penal Code; Article 1157, Civil Code (Sources of Obligation); Rule 111, Rules of Court.

A — APPLICATION: Civil liability ex delicto is conditioned upon the finality of criminal conviction. When the accused dies before final judgment, no final conviction exists. Consequently, the criminal action and the civil liability arising from the felony are totally extinguished. However, civil actions based on other independent sources of obligation (law, contracts, quasi-contracts, quasi-delicts under Arts. 32, 33, 34, 2176 Civil Code) may be pursued in a separate civil action against the estate.

C — CONCLUSION: The Supreme Court DECLARED the criminal and civil liability ex delicto of Rogelio Bayotas EXTINGUISHED, and DISMISSED the criminal appeal.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- • **Doctrine:** Landmark Bayotas Doctrine: Death of the convict pending appeal totally extinguishes criminal liability and civil liability ex delicto.
- • **Doctrine:** Independent civil liabilities under Articles 32, 33, 34, and 2176 of the Civil Code survive and may be filed separately against the estate.

CASE 8: People of the Philippines v. Simon

G.R. No. 930280, July 29, 1994 | 234 SCRA 555 | Ponente: Regalado, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- • Syllabus Coverage:
- • Governing Statutory Article:

II. FACTS OF THE CASE

Martin Simon was caught selling 3.8 grams of marijuana in 1988 and sentenced to Life Imprisonment under the Dangerous Drugs Act of 1972 (R.A. 6425). While his appeal was pending, Republic Act No. 7659 amended the penalties under the Dangerous Drugs Act, graduating penalties according to the quantity of drugs seized and making quantities below 750 grams punishable by correctional/afflictive penalties under the Revised Penal Code.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the graduated penalty system of the Revised Penal Code and the Indeterminate Sentence Law (ISLAW) apply to offenses under Special Penal Laws that adopt RPC penalties by reference.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Retroactive application of favorable penal statutes and supplementary operation of Book I of the RPC.

L — LEGAL BASIS: Article 22, Revised Penal Code (Favorable Retroactivity); Article 10, RPC (Supplementary Application); Act No. 4103 (Indeterminate Sentence Law).

A — APPLICATION: Since R.A. 7659 imposed lighter penalties for small quantities of drugs and adopted the RPC penalty scale (Prision Correccional to Reclusion Temporal), it must be given retroactive effect in favor of Simon under Article 22. Furthermore, since the penalty became divisible, the Indeterminate Sentence Law applies, entitling Simon to a minimum and maximum term.

C — CONCLUSION: The Supreme Court MODIFIED the sentence to an indeterminate penalty of 6 months of Arresto Mayor to 6 years of Prision Correccional, and ORDERED his immediate release for having served more than the maximum term.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Landmark Simon Doctrine: When a special law adopts the penalty scale and periods of the Revised Penal Code, the rules in Book I of the RPC on modifying circumstances and the Indeterminate Sentence Law apply fully.
- **Doctrine:** Penal statutes that reduce penalties must be applied retroactively to pending appeals under Article 22 of the RPC.

CASE 9: Enrile v. Salazar

G.R. No. 92163, June 5, 1990 | 186 SCRA 217 | Ponente: Narvasa, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Senator Juan Ponce Enrile was arrested and charged with 'Rebellion with Murder and Multiple Frustrated Murder' following the failed December 1989 military coup against the Aquino government. The prosecution sought to deny him bail by characterizing the offense as a complex crime under Article 48 of the Revised Penal Code, punishable by death/reclusion perpetua.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether common crimes (such as murder, homicide, arson) committed in furtherance of rebellion are absorbed in the single crime of Simple Rebellion, or can form a complex crime under Article 48 of the Revised Penal Code.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: Absorbed in Simple Rebellion. There is no complex crime of Rebellion with Murder.

L — LEGAL BASIS: People v. Hernandez, 99 Phil. 515 (1956); Article 48, Revised Penal Code; Article 134 & 135, RPC (Rebellion).

A — APPLICATION: Rebellion is a single crime consisting of a political movement to overthrow the government. All acts of violence, killing, destruction of property, and skirmishes committed as a means to execute the rebellion or in furtherance thereof are absorbed as essential ingredients of rebellion. They cannot be prosecuted separately or complexed under Article 48 to increase penalties.

C — CONCLUSION: The Supreme Court GRANTED bail to Senator Enrile, holding that the charge against him was simple rebellion, a bailable offense.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Hernandez & Enrile Doctrine: Rebellion absorbs all common crimes committed in furtherance of political rebellion. There is no crime of 'Rebellion Complexed with Murder.'
- **Doctrine:** Complex crimes under Article 48 do not apply to crimes that inherently encompass multiple acts of violence as a unified political felony.

CASE 10: Ivler v. Hon. Maria Rowena Modesto-San Pedro

G.R. No. 172716, November 17, 2010 | 635 SCRA 191 | Ponente: Carpio, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Jason Ivler was involved in a vehicular collision along Ortigas Avenue that resulted in the death of Undersecretary Nestor Ponce, Jr. and injuries to Evangeline Ponce. Ivler was charged with two separate offenses under Article 365: (1) Reckless Imprudence Resulting in Slight Physical Injuries, and (2) Reckless Imprudence Resulting in Homicide and Damage to Property. Ivler pleaded guilty to the slight physical injuries case, and then moved to quash the homicide case on the ground of Double Jeopardy.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether a prior conviction for Reckless Imprudence Resulting in Slight Physical Injuries bars a subsequent prosecution for Reckless Imprudence Resulting in Homicide arising from the exact same vehicular accident under the Double Jeopardy clause.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Double jeopardy bars the second prosecution.

L — LEGAL BASIS: Article 365, Revised Penal Code (Criminal Negligence / Quasi-Offenses); Article III, Section 21, 1987 Constitution (Double Jeopardy); Section 7, Rule 117, Rules of Court.

A — APPLICATION: Under Article 365, the crime punished is the reckless act itself (the mental state of negligence/imprudence), not the resulting damages. Reckless imprudence is a single quasi-offense, not a mere modality of committing dolo felonies. Once an accused is convicted or acquitted of reckless imprudence for a single vehicular act, double jeopardy attaches to all consequences resulting from that single act.

C — CONCLUSION: The Supreme Court REVERSED the trial court and ORDERED the dismissal of the second information on grounds of Double Jeopardy.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Landmark Ivler Doctrine: Reckless Imprudence under Article 365 of the RPC is a single, distinct quasi-crime. The law penalizes the negligent act, not the resulting physical injuries or deaths.
- **Doctrine:** A single reckless act cannot be split into multiple criminal prosecutions; conviction for one consequence bars prosecution for all other consequences under Double Jeopardy.

CASE 11: Joseph Ejercito Estrada v. Sandiganbayan

G.R. No. 148560, November 19, 2001 | 369 SCRA 394 | Ponente: Bellosillo, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:** II. Felonies — Mala In Se vs. Mala Prohibita
- **Governing Statutory Article:** Republic Act No. 7080 (Plunder Law as Amended by R.A. 7659)

II. FACTS OF THE CASE

Former President Joseph Estrada was charged with Plunder under R.A. 7080 for amassing ill-gotten wealth through jueteng collections, misappropriation of tobacco excise taxes, and anomalous stock transactions. Estrada challenged the constitutionality of the Plunder Law, claiming it was void for vagueness and unconstitutionally eliminated the requirement of mens rea (criminal intent) by creating a malum prohibitum offense of unprecedented severity.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the crime of Plunder under R.A. 7080 is malum in se requiring proof of criminal intent (mens rea) beyond reasonable doubt.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Plunder is a malum in se offense requiring proof of criminal intent (mens rea) for each component predicate crime.

L — LEGAL BASIS: Republic Act No. 7080, Section 2; Article 3, Revised Penal Code; Article III, Section 14(2), 1987 Constitution.

A — APPLICATION: Plunder is an accumulation of inherently immoral acts (bribery, malversation, extortion, theft of public funds) that are malum in se under the Revised Penal Code. The legislative deliberations of R.A. 7080 expressly show that the lawmakers intended plunder to be malum in se, requiring proof of felonious intent to defraud the government and amass ill-gotten wealth beyond reasonable doubt.

C — CONCLUSION: The Supreme Court UPHELD the constitutionality of the Plunder Law and confirmed that mens rea must be established by the prosecution.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Landmark Estrada Doctrine: Plunder under R.A. 7080 is malum in se, not malum prohibitum. The prosecution must prove mens rea and criminal intent.
- **Doctrine:** Statutory crimes composed of inherent mala in se predicate acts retain their character as mala in se requiring felonious intent.

CASE 12: United States v. H.N. Bull*15 Phil. 7 (1910) | Ponente: Elliott, J.***I. SYLLABUS TOPIC & STATUTORY PROVISION**

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

H.N. Bull, master of a Norwegian merchant steamship, transported cattle and livestock from Formosa (Taiwan) into the port of Manila. During the voyage, the animals were not provided with suitable food, water, and stalls as required by Act No. 55 of the Philippine Commission, resulting in injury and death of cattle while within Philippine territorial waters.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether Philippine courts have territorial criminal jurisdiction over offenses committed aboard foreign merchant vessels entering Philippine territorial waters.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Philippine courts have criminal jurisdiction under the English Rule over foreign merchant vessels when the offense affects the peace and order of Philippine territory.

L — LEGAL BASIS: Article 2, Revised Penal Code; Public International Law; French Rule vs. English Rule.

A — APPLICATION: Under the English Rule adopted in the Philippines, crimes committed aboard foreign merchant vessels entering territorial waters and ports are triable by local courts, unless the offense affects only the internal discipline of the ship. Transporting livestock without statutory protections into Philippine ports directly impacts local quarantine, agriculture, and public order.

C — CONCLUSION: The Supreme Court AFFIRMED the jurisdiction and conviction of Captain Bull.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** The English Rule governs Philippine territorial jurisdiction: Crimes aboard foreign merchant vessels in Philippine waters are subject to local jurisdiction unless they affect purely internal vessel matters.
- **Doctrine:** Foreign merchant ships entering local waters subject themselves to the territorial laws of the coastal State.

CASE 13: People of the Philippines v. Lo-lo and Saraw*43 Phil. 19 (1922) | Ponente: Malcolm, J.***I. SYLLABUS TOPIC & STATUTORY PROVISION**

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Six Moros, including Lo-lo and Saraw, armed with bolos and spears, boarded a Dutch merchant vessel on the high seas between the Philippines and the Dutch East Indies (Indonesia). They attacked the crew, forced the passengers into a boat without provisions, raped two women, and robbed the cargo. They later landed in the Sulu Archipelago and were captured by Philippine constabulary.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether Philippine courts have criminal jurisdiction over crimes of piracy committed on the high seas outside territorial waters by foreign nationals against a foreign vessel.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Piracy is a crime against the law of nations (*hostes humani generis*); universal jurisdiction allows any sovereign State where the pirates are captured to punish them.

L — LEGAL BASIS: Article 2(5), Article 122, Revised Penal Code; Universal Jurisdiction under International Law.

A — APPLICATION: Pirates are in law *hostes humani generis* (enemies of the human race). Piracy is a universal crime against all mankind. It can be punished by any sovereign state that apprehends the offenders, regardless of the nationality of the victims, the flag of the vessel, or the location of the offense on the high seas.

C — CONCLUSION: The Supreme Court AFFIRMED the conviction of Lo-lo and Saraw for Piracy and sentenced them to Death (modified to Reclusion Perpetua under prevailing law).

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Universal Jurisdiction over Piracy: Piracy is triable by any court of any country where the offenders are captured, as an exception to territoriality.
- **Doctrine:** Pirates are *hostes humani generis* and are subject to universal criminal jurisdiction on the high seas.

CASE 14: United States v. James L. Brobst

14 Phil. 310 (1909) | Ponente: Carson, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Brobst, an American mine manager in Masbate, struck an indigenous worker (Mann) in the ribs with his fist for entering an unauthorized area. The worker stumbled, complained of intense chest pain, and died a few hours later. A medical autopsy revealed that the worker suffered from an enlarged, diseased spleen which ruptured as a result of the blow, causing fatal internal hemorrhage.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether an accused who strikes a person is criminally liable for homicide when the blow causes fatal internal rupture due to an underlying pre-existing illness unknown to the accused.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Proximate cause makes the actor liable for the death despite the pre-existing diseased condition of the victim.

L — LEGAL BASIS: Article 4, Paragraph 1, Revised Penal Code (Proximate Cause); Maxim 'El que es causa de la causa es causa del mal causado.'

A — APPLICATION: Under Article 4(1), criminal liability is incurred by any person committing a felony although the wrongful act done be different from what was intended. The fist blow was unlawful and was the proximate cause of the rupture of the diseased spleen. A wrongdoer takes his victim as he finds him; a pre-existing medical infirmity does not break the chain of proximate causation.

C — CONCLUSION: The Supreme Court CONVICTED Brobst of Homicide (with the mitigating circumstance of lack of intent to commit so grave a wrong under Art. 13[3]).

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Proximate Cause in Criminal Law: The actor is criminally liable for the death of the victim if his unlawful blow was the direct or efficient cause that set in motion the chain of events producing death.
- **Doctrine:** A pre-existing illness or physical vulnerability of the victim does not relieve the aggressor of criminal liability for homicide.

CASE 15: People of the Philippines v. Fernando Iligan

G.R. No. 75369, November 26, 1990 | 191 SCRA 643 | Ponente: Fernan, C.J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Fernando Iligan hacked Esmeraldo Quinones, Jr. on the forehead with a bolo during a street fight, inflicting a non-mortal, superficial laceration. The victim fled the scene on foot. Half an hour later, the victim was found dead on the highway two kilometers away, his skull crushed by an unidentified speeding vehicular hit-and-run driver.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the accused is criminally liable for the homicide of a victim whose death was directly caused by an independent vehicular hit-and-run after fleeing the initial assault.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: NO. The vehicular collision was an active, intervening efficient cause (*novus actus interveniens*) that broke the chain of proximate causation.

L — LEGAL BASIS: Article 4, Paragraph 1, Revised Penal Code; Principles of Intervening Efficient Cause in Proximate Causation.

A — APPLICATION: To hold an assailant liable for death under Article 4(1), the felonious act must be the proximate cause of death. Here, the bolo wound was superficial and non-mortal. The death was caused entirely by a separate vehicular run-over that occurred kilometers away. This unexpected vehicular event was an independent efficient cause that severed the causal connection from the initial hack wound.

C — CONCLUSION: The Supreme Court ACQUITTED Iligan of Homicide and CONVICTED him only of Less Serious Physical Injuries for the bolo wound.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** An independent intervening cause (*novus actus interveniens*) that is completely unrelated to the initial unlawful act breaks the causal chain and relieves the accused of liability for the ultimate fatal result.
- **Doctrine:** Assailant is only liable for the specific injuries actually inflicted when death is caused by an independent subsequent event.

CASE 16: Sulpicio Intod v. Court of Appeals

G.R. No. 103119, October 21, 1992 | 215 SCRA 52 | Ponente: Campos, Jr., J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- • Syllabus Coverage:
- • Governing Statutory Article:

II. FACTS OF THE CASE

Intod and three armed companions went to the house of Bernardina Palangpangan with the deliberate intention to kill her due to a land feud. Firing all their firearms simultaneously, they riddled her bedroom with bullets. Unknown to the assailants, Palangpangan was not in the room, having traveled to another municipality earlier that day.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether firing at an empty bedroom where the intended victim is absent constitutes Attempted Murder or an Impossible Crime under Article 4, Paragraph 2 of the Revised Penal Code.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: Impossible Crime. Firing at an empty room constitutes an Impossible Crime of murder due to physical impossibility of execution.

L — LEGAL BASIS: Article 4, Paragraph 2, and Article 59, Revised Penal Code (Impossible Crimes).

A — APPLICATION: An impossible crime requires: (1) an act against persons or property; (2) evil felonious intent; and (3) accomplishment is inherently impossible due to physical or legal impossibility or ineffectual means. Since Palangpangan was completely absent from the house, it was physically impossible to kill her. The crime could not be attempted murder because the subjective and objective phases could never produce murder.

C — CONCLUSION: The Supreme Court MODIFIED the conviction from Attempted Murder to IMPOSSIBLE CRIME under Article 4(2) in relation to Article 59, imposing Arresto Mayor.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- • **Doctrine:** Landmark Intod Doctrine: Firing upon an empty bed or absent person is an Impossible Crime due to factual/physical impossibility.
- • **Doctrine:** Impossible crimes are penalized under Article 59 to suppress the dangerous social propensity of the actor despite the impossibility of actual injury.

CASE 17: People of the Philippines v. Rodolfo Olarbe

G.R. No. 227421, July 23, 2018 | 872 SCRA 479 | Ponente: Bersamin, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- • Syllabus Coverage:
- • Governing Statutory Article:

II. FACTS OF THE CASE

Arnis master and farmer Rodolfo Olarbe and his common-law wife were asleep in their rural hut when an armed man (Arca) forcibly barged into the house in the dead of night, aimed a shotgun at Olarbe, and hacked Olarbe with

a bolo. Olarbe grappled with the intruder, disarmed him, and in the ensuing violent struggle, struck Arca with the bolo and an axe, killing him.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the killing was justified under the justifying circumstance of Self-Defense under Article 11, Paragraph 1 of the Revised Penal Code.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. The accused acted in complete and lawful Self-Defense against an unprovoked, lethal nocturnal attack inside his own dwelling.

L — LEGAL BASIS: Article 11, Paragraph 1, Revised Penal Code (Self-Defense); Elements of Unlawful Aggression and Reasonable Necessity.

A — APPLICATION: Unlawful aggression was continuous and grave, occurring inside Olarbe's home at midnight. In evaluating the reasonable necessity of the means employed, the law does not require calm, mechanical proportionality; it recognizes the instinctive reaction of a person defending his life in mortal combat. Olarbe had no duty to retreat inside his own home (Castle Doctrine).

C — CONCLUSION: The Supreme Court REVERSED the conviction and ACQUITTED Rodolfo Olarbe of all charges.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Reasonable necessity of means in self-defense is judged based on the instinctive reaction of the defender under mortal peril, not retrospective mathematical balance.
- **Doctrine:** A person attacked in his own home is not required to retreat (Castle Doctrine in Philippine self-defense jurisprudence).

CASE 18: People of the Philippines v. Mamerto Narvaez

G.R. Nos. L-33466-67, April 20, 1983 | 121 SCRA 389 | Ponente: Makasiar, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Narvaez was resting inside his house when two men (Fleischer and Rubia) began erecting a wire fence on disputed land, which cut off Narvaez's access to the highway and trapped his residence. When Narvaez pleaded with them to stop, they ridiculed him. Narvaez grabbed his shotgun and shot both men, killing them.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the killing of persons unlawfully encroaching on real property constitutes lawful defense of property or incomplete self-defense.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: Incomplete Self-Defense under Art. 13(1) in relation to Art. 69.

L — LEGAL BASIS: Article 11(1), Article 13(1), Article 69, Revised Penal Code (Defense of Property and Incomplete Defense).

A — APPLICATION: Human life is vastly superior to property rights; one cannot kill a mere trespasser to protect land. However, the unlawful destruction of Narvaez's property and fence constituted an unlawful aggression against his property rights. Because the second requisite (reasonable necessity of means) was absent, Narvaez was entitled to privileged mitigating incomplete self-defense and passion/obfuscation.

C — CONCLUSION: The Supreme Court CONVICTED Narvaez of Homicide with privileged mitigating circumstances, drastically reducing his penalty and ordering his release on served time.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Defense of property alone does not justify homicide; reasonable necessity requires that force must be proportionate and life must not be taken for mere property.
- **Doctrine:** Unlawful aggression against property gives rise to Incomplete Self-Defense under Article 13(1) and Article 69.

CASE 19: People of the Philippines v. Bonoan

64 Phil. 87 (1937) | Ponente: Laurel, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Celestino Bonoan fatally stabbed Carlos Guison in Manila. The defense proved that Bonoan suffered from dementia praecox (schizophrenia), had been committed to the National Psychopathic Hospital multiple times, and exhibited total mental derangement, hallucinations, and irrational behavior before and immediately after the killing.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether the accused is exempt from criminal liability by reason of insanity under Article 12, Paragraph 1 of the Revised Penal Code.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. The accused was completely deprived of reason and intelligence at the time of the commission of the act.

L — LEGAL BASIS: Article 12, Paragraph 1, Revised Penal Code (Exemption by Reason of Insanity); M'Naghten / Complete Deprivation of Reason Test.

A — APPLICATION: Philippine law follows the test of complete deprivation of intelligence. Insanity under Article 12(1) exists when there is a complete absence of the power to discern right from wrong, or total deprivation of reason. Expert psychiatric testimony and hospital records established that Bonoan's schizophrenia completely destroyed his capacity to understand the criminality of his act.

C — CONCLUSION: The Supreme Court REVERSED the conviction, ACQUITTED Bonoan on ground of Insanity, and ORDERED his commitment to the National Psychopathic Hospital.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Landmark Bonoan Test for Insanity: The defense must prove complete deprivation of intelligence, reason, or discernment at the precise time of the commission of the crime.

- **Doctrine:** Acquittal by reason of insanity requires mandatory judicial commitment of the insane person to a medical psychiatric facility.

CASE 20: Basilio v. Court of Appeals

G.R. No. 113433, March 17, 2000 | 328 SCRA 341 | Ponente: Pardo, J.

I. SYLLABUS TOPIC & STATUTORY PROVISION

- **Syllabus Coverage:**
- **Governing Statutory Article:**

II. FACTS OF THE CASE

Simplicio Pronebo was convicted of Reckless Imprudence Resulting in Damage to Property with Double Homicide for a vehicular collision while driving a passenger truck owned by petitioner Basilio. The judgment ordered the driver to pay civil indemnities. Upon return of the writ of execution unsatisfied due to the driver's insolvency, the trial court issued a writ of subsidiary execution against Basilio as employer under Article 103 of the Revised Penal Code.

III. SUBSTANTIVE LEGAL ISSUE(S)

Whether an employer is subsidiarily liable under Article 103 of the RPC for civil liabilities of an employee convicted of a crime committed in the discharge of duties.

IV. THE RULING (ALAC METHODOLOGY)

A — ANSWER: YES. Subsidiary civil liability under Art. 103 attaches automatically upon proof of employee's insolvency.

L — LEGAL BASIS: Articles 102 and 103, Revised Penal Code (Subsidiary Civil Liability of Employers); Rule 111, Rules of Court.

A — APPLICATION: Under Article 103, an employer is subsidiarily liable for felonies committed by his employees in the discharge of their duties. The conviction of the employee is binding and conclusive upon the employer as to civil liability. Once the sheriff returns the execution against the employee unsatisfied by reason of insolvency, subsidiary execution against the employer immediately issues.

C — CONCLUSION: The Supreme Court AFFIRMED the subsidiary execution against the employer Basilio.

V. KEY CRIMINAL LAW DOCTRINES ESTABLISHED

- **Doctrine:** Landmark Basilio Doctrine: Requisites for Subsidiary Liability under Art. 103: (1) Employer-employee relationship; (2) Employer is engaged in industry; (3) Crime committed in discharge of duty; (4) Employee is insolvent.
- **Doctrine:** The judgment of conviction against the employee is conclusive upon the employer regarding civil indemnity ex delicto.